

MINISTRY OF ELECTRONICS AND INFORMATION TECHNOLOGY

NOTIFICATION

New Delhi, the 13th November, 2025

G.S.R. 842(E).-In exercise of the powers conferred by section 40 of the Digital Personal Data Protection Act, 2023 (22 of 2023), the Central Government hereby makes the following rules, namely:-

1. Short title and commencement.-(1) These rules may be called the Digital Personal Data Protection Rules, 2025.

(2) They shall come into force in the following manner, namely:-

(a) rules 1, 2, 17, 18, 19, 20 and 21 shall come into force on the date of their publication in the Official Gazette;

(b) rule 4 shall come into force on the expiry of one year from the date of their publication in the Official Gazette;
and

(c) rules 3, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 22 and 23 shall come into force on the expiry of eighteen months from the date of their publication in the Official Gazette.

2. Definitions.-In these rules, unless the context otherwise requires,-

(a) 'Act' means the Digital Personal Data Protection Act, 2023;

(b) 'Board' means the Data Protection Board of India established under section 18 of the Act.

7. Intimation of personal data breach.-

(1) Where a Data Fiduciary becomes aware of a personal data breach, it shall intimate the Board without delay, providing an initial description of the breach, including the nature, extent, and timing of the incident.

(2) The Data Fiduciary shall submit a detailed report to the Board within 72 hours of becoming aware of the personal data breach, containing the root cause analysis, remedial actions taken or proposed to be taken, and the status of intimation to data principals.

(3) The Data Fiduciary shall also intimate each affected Data Principal without delay regarding the personal data breach, describing the nature of the breach, likely consequences, and safety measures recommended to be taken.